**IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH**
**(*through* Hybrid Mode)**
**COURT-I**

**Item No. 7**

**CP(CAA) No. 14/Chd/Pb/2023**
**(2nd Motion)**

**IN THE MATTER OF:**

Akm Real Estate Developers Pvt. Ltd. …Transferor Company

And

Digvijay Chemicals Ltd. …Transferee Company

**Under Section:** 230-232, CA 2013

**Order delivered on 13.11.2024**

**CORAM:**

**SH. UMESH KUMAR SHUKLA**
**HON'BLE MEMBER (T)**

**SH. HARNAM SINGH THAKUR**
**HON'BLE MEMBER (J)**

**PRESENT:**

For the Petitioner : Mr. Rahul Jogi, Advocate
Ms. Deepali Garg, PCS
For the Income Tax Department: Mr. Yogesh Putney, Senior Standing Counsel
For the RoC: Mr. Vineet Khattri, Company Prosecutor
For the OL: Mr. Edward Augustine George

**ORDER**

In pursuance of the order dated 04.10.2024, service has been done with respect to the Excise Department, Punjab through email and an affidavit of service has been filed vide Diary No. 01045/15 dated 17.10.2024, therefore, Ld. Counsel for the Petitioner is directed to serve the Excise Department through speed post and file a fresh affidavit of service to that effect within one week. Affidavit on behalf of the Petitioner Company-3 regarding the applicability of the Food Safety and Standards Authority of India has been filed vide Diary No. 01045/17 dated 17.10.2024 in which it is stated that Petitioner Company-3 was issued licence by FSSAI and therefore

Petitioner Company-3 sent the notice to FSSAI by post on 15.10.2024 and enclosed the postal receipt but there is no tracking report attached in this affidavit. Ld. Counsel for the petitioner is directed to file the tracking report with an affidavit regarding the item which was delivered to FSSAI within one week. Affidavit on behalf of Petitioner Company-3 has been filed vide Diary No. 01045/16 dated 17.10.2024 regarding none of the companies are involved in the power generation, transmission, and distribution business and no business licence to that effect has been obtained. The same is taken on record. Ld. Counsel for the petitioner is also directed to file audited accounts as on 31.03.2024 within one week. List on 06.12.2024 .

**Sd/-**

**(UMESH KUMAR SHUKLA)**
**MEMBER (T)**

**Sd/-**

**(HARNAM SINGH THAKUR)**
**MEMBER (J)**

Preeti